

clauses. (Opposition, pp. 7:22-8:8.) On reply, Defendant argues that “these allegations are entirely conclusory and not based on allegations in the Complaint. Plaintiffs do not identify which specific contract provisions are unconscionable, why they are unconscionable, or how they affect consumers generally rather than just these Plaintiffs.” (Reply, p. 6:23-28.)

The Court agrees with Defendant that the allegations Plaintiffs assert support this claim (Opposition, pp. 7-8) are not actually pleaded in the Complaint. The allegations pled by Plaintiffs in the complaint are conclusory and not specific. For example, “Freedom Forever has engaged in unfair and unlawful business practices in the State of California.” (Complaint, ¶ 63.) “Freedom Forever’s business acts and practices, have caused substantial harm to California consumers, including Plaintiffs and members of the public by enforcing deceptive business acts and practices in companies engaged in contracting work on residential properties that will likely cause consumers to lose protection and the opportunity to fair competition in commercial markets for related goods and services.” (*Id.*, at ¶ 59.) Plaintiffs’ allegations in support of their UCL claim are insufficiently specific and overly conclusory. (*Khoury v. Maly’s of Cal.* (1993) 14 Cal.App.4th 612, 617 [“A plaintiff alleging unfair business practices [under the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation.”].)

Therefore, the Court grants Defendant’s motion for judgment on the pleadings as to Plaintiff’s fifth cause of action for violation of Business and Professions Code section 17200, et seq., with leave to amend.

Ruling on Motion

The Court **GRANTS** Defendant’s motion for judgment on the pleadings as to the second cause of action for financial elder abuse, the third cause of action for negligent misrepresentation, and the fifth cause of action for violation of Business & Professions Code section 17200 et seq., with leave to amend.

Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc., § 438, subd. (h)(2).)

8. 9:00 AM CASE NUMBER: C24-02966

CASE NAME: YUE REN VS. GAUTAM PATIL

***HEARING ON MOTION IN RE:**

FILED BY: REN, YUE

TENTATIVE RULING:

Plaintiff has answered the Cross-Complaint. The **demurrer is now moot.**

9. 9:00 AM CASE NUMBER: C25-00311

CASE NAME: ERNISHA JOHNSON VS. HUNTER CURTIS CAMPBELL

***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**

FILED BY: BALLARD, TONY

TENTATIVE RULING: